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April 10, 2025

ENGROSSED HOUSE
BILL NO. 1811

By: Newton of the House

and

Jech of the Senate

An Act relating to insurance; amending Section 10, Chapter 303, O.S.L. 2024 (36 O.S. Supp. 2024, Section 6570.9), which relates to treatment of chronic conditions and validity period for prior authorization of inpatient and non-inpatient care; modifying timeframe; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 10, Chapter 303, O.S.L.
2024 (36 O.S. Supp. 2024, Section 6570.9), is amended to read as
follows:

Section 6570.9. A. If a prior authorization is required for a health care service, other than for inpatient care, for the treatment of a chronic condition of an enrollee, then the prior authorization shall remain valid for at least six (6) months from the date the health care provider receives the prior authorization

1 approval, unless clinical criteria changes and notice of the change
2 in clinical criteria is provided as stipulated in this act.

3 B. If a prior authorization is required for inpatient acute
4 care for the treatment of a chronic condition of an enrollee, then
5 the prior authorization shall remain valid for at least fourteen
6 (14) calendar days from the date the health care provider receives
7 the prior authorization approval.

8 1. If an enrollee requires inpatient care beyond the length of
9 stay that was previously approved by the utilization review entity,
10 then the utilization review entity shall evaluate any prior
11 authorization requests for the continuation of inpatient care
12 according to the provisions of this act. A utilization review
13 entity shall not use any stricter criteria to determine medical
14 necessity and appropriateness of the continuation of inpatient care
15 as the utilization review entity used to evaluate the initial
16 request for authorization of inpatient care. A utilization review
17 entity shall review any relevant and pertinent literature or data
18 provided by the health care provider to determine the medical
19 necessity and appropriateness of the requested length of stay and/or
20 continuation of inpatient care. A prior authorization for the
21 continuation of inpatient care shall remain valid for a maximum of
22 fourteen (14) calendar days from the date the health care provider
23 receives the prior authorization approval.

1 2. If a utilization review entity fails to respond to a health
2 care provider's timely prior authorization request for the
3 continuation of inpatient acute care before the termination of the
4 previously approved length of stay, then the health benefit plan
5 shall continue to compensate the health care provider at the
6 contracted rate for inpatient care provided until the utilization
7 review entity issues its determination on the prior authorization
8 request.

9 For the purposes of this section, a timely request for
10 continuation of inpatient care means a request that is submitted at
11 least ~~seventy-two (72)~~ twenty-four (24) hours prior to the
12 termination of the previously approved prior authorization and
13 includes all necessary information for the utilization review entity
14 to make a determination.

15 3. If a utilization review entity issues an adverse
16 determination to a health care provider's prior authorization
17 request for continuation of inpatient acute care and the health care
18 provider appeals the adverse determination according to the
19 provisions of this act, then the health benefit plan shall continue
20 to compensate the health care provider at the contracted rate for
21 inpatient care provided until the appeal has been finalized.

22 C. This section does not require a health benefit plan to cover
23 care, treatment, or services for a health condition that the terms
24 of coverage otherwise completely exclude from the policy's covered

1 benefits without regard for whether the care, treatment, or services
2 are medically necessary.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
5 April 10, 2025 - DO PASS
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